

STATE OF NEW YORK

3882--A

2025-2026 Regular Sessions

IN ASSEMBLY

January 30, 2025

Introduced by M. of A. WEPRIN -- read once and referred to the Committee on Higher Education -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the education law, in relation to requiring a licensed massage therapist to present a state issued photo identification card when requested at the time of performing services

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Section 7802 of the education law, as amended by chapter
2 230 of the laws of 1997, is amended to read as follows:

3 § 7802. Practice of massage therapy and use of title "masseur",
4 "masseuse" or "massage therapist" or the term "massage" or "massage
5 therapy". Only a person licensed or authorized pursuant to this chapter
6 shall practice massage therapy and only a person licensed under this
7 article shall use the title "masseur", "masseuse" or "massage thera-
8 pist". No person, firm, partnership or corporation claiming to be
9 engaged in the practice of massage or massage therapy shall in any
10 manner describe, advertise, or place any advertisement for services as
11 defined in section seventy-eight hundred one of this article unless such
12 services are performed by a person licensed or authorized pursuant to
13 this chapter. A person licensed and registered to practice massage
14 therapy under this article shall obtain a professional photo identifica-
15 tion card issued by the department. Upon request, a person licensed and
16 registered to practice massage therapy under this article shall present
17 such card at the time and place where such licensee is providing
18 services.

19 § 2. This act shall take effect on the one hundred eightieth day
20 after it shall have become a law; provided, however, that within one
21 year of the effective date of this act, all persons licensed and regis-
22 tered to practice massage therapy under title eight of the education law
23 shall be in compliance with the provisions of this act.

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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